Answerability, Normativity, and Institutional Facts

Many facts about social life appear, at first glance, to be regularities. People in a city usually turn right at most intersections. Colleagues send status emails at certain hours. A friend has coffee at seven. When one of these patterns breaks, we do not always react in the same way. If a colleague skips a queue, we may ask for an excuse, blame him, or say he has acted impolitely. If my friend does not have coffee at seven, we are at most surprised and revise a forecast. This contrast separates normative social facts from mere coincidental regularities.

This essay distinguishes three levels: brute regularities, normative social facts, and institutional facts. The central claim has two parts. First, the minimal mark of a normative social fact is a shared space of answerability: deviation from a regularity is treated as a potential breach, inviting reason-demands, excuses, justifications, sanctions, or changes in normative standing. Second, answerability is not the mark of every institutional fact. Institutional facts are constituted by collectively recognized status functions. But when a status function confers deontic powers over persons, those powers are exercised as normative powers only within a minimal substantive grammar of answerability. The diagnostic is therefore not a test for all social facts, nor is it a lexical test for norms. It is a response-form diagnostic for the lower-level structure of second-personal reason-giving.

1. Answerability, standing, and the status of the diagnostic

The normativity at issue is minimal. A regularity is normatively significant for a group when conformance is treated as a reason for action and nonconformance as a reason for criticism, challenge, or revision. The group need not regard the standard as morally correct. A club rule may be arbitrary; a law may be unjust. What matters is that the standard supplies reasons that participants recognize as applicable and that can be invoked, challenged, or revised.

Answerability, accountability, responsibility, and standing require distinction. Answerability is a relation between an agent and another or others: an agent is answerable for an action relative to a standard when others may reasonably demand an account, and the account can be accepted or rejected on grounds that bear on permissibility, fault, liability, or future normative relations. Accountability is the structural condition of being answerable: an agent is accountable when she stands in a relation in which answerability is possible. Responsibility is broader, including capacities to understand reasons, act otherwise, and bear moral or legal outcomes. Not every responsible person is answerable in a given relation, and not every answerable person is morally responsible in the full sense.

Standing is the term most prone to inflation. Here it is used narrowly. A standing is a position in a reason-giving space: a set of entitlements to make or answer demands, to offer or reject excuses, to invoke a standard, and to be treated as obligated, permitted, or prohibited. This use is deliberately wider than Darwall's "standing to make demands" in the moral case, but it is not a catchall. Trust may change as a consequence, but the diagnostic mark is that the change is

articulated as a change in what is owed or entitled. If I expect a colleague to submit a report and she does not, I may update my beliefs about her competence and delegate less. That is a prediction-revision response. It becomes a standing change only if the group treats her as owing an explanation, as entitled to offer an excuse or challenge the demand, and as potentially liable if the excuse is rejected. The relevant difference is not that my forecast changes, but that her position in the reason-giving space changes: she is now in a position to be addressed as owing an account, and the account can alter the assessment.

This is why answerability is social. Epistemic, moral, and prudential norms may apply to individuals without creating a shared social fact. The social fact appears when a norm is embedded in mutual accountability: agents can address one another, or an institution can address agents, as participants in a common framework. The diagnostic is also lower-level than rights, obligations, and authority. To say that someone has an obligation is already to place her in a position to be asked. A right is a claim that can be enforced through reason-demands and remedies. Authority is a status whose exercise is answerable to challenges of competence and jurisdiction. Collective intentionality, in the work of Bratman and others, explains the shared attitude that sustains a joint practice. But it does not by itself show the operational signature of normativity: what happens when the practice breaks. Answerability names that signature. It is not that answerability replaces these concepts; it is that they are higher-level abstractions from a shared grammar of challenge.

The diagnostic is second-personal in the sense developed by Darwall (2006), but it is not limited to his moral framework. Darwall's second-personal standpoint emphasizes that moral obligations arise from claims and standing to demand; Strawson's reactive attitudes (1958) model the emotional core of that space. The present account broadens the range. Legal, institutional, and many weak social practices involve second-personal demands without the full intensity of moral blame. A procedural demand for an account may be cold; a sanction may be impersonal; an institutional status may authorize demands that are not morally grounded. The common element is not resentment but the relational grammar: a demand, an answer, an assessment, and a change in standing. Hart's distinction between rules and habits (1961) points in the same direction, but the answerability diagnostic is more specific than the internal point of view. It does not merely ask whether participants criticize or accept a standard; it asks what form responses to deviation take: whether deviations are treated as breaches subject to repair, exceptions, or challenge, rather than as mere changes in behavior.

The account also relates to, but is not exhausted by, Bicchieri's account of social norms (2006). Bicchieri's normative expectations specify that agents believe others approve of conformance and disapprove of deviation; answerability identifies the public practice through which that approval and disapproval are expressed, negotiated, and revised. Ostrom's institutional grammar (2005) is useful for making the diagnostic operational: institutional rules often specify actors, activities, conditions, and sanctions. Answerability corresponds to the if-then structure in which a deviation triggers a recognized response, an account or challenge can be raised, and the outcome can alter classification or sanction.

A serious objection is circularity. If the diagnostic asks whether a regularity is normative when deviations are treated as breaches, reason-demands, or standing changes, are we not already using the very category we are trying to detect? The objection is fair if the aim were to reduce normative social facts to nonnormative behavioral data. That is not the aim. Social facts of this kind are constituted by normative forms; they do not have a physical signature independent of the social relations in which they occur. The diagnostic is conceptual, not empirical in the sense of measuring a nonnormative base. It avoids vicious circularity because it does not ask whether participants call the practice a norm or whether the observer already knows the practice is normative. It asks whether certain interactional moves have specified roles: whether a move addresses a deviator as owing an account; whether a response can be accepted or rejected; and whether acceptance or rejection can change the classification of the event or the agent's normative position. These roles are lower-order features of the interaction. They are not the target category "normative social fact," though they are normative in a thin sense. The claim is that the thin response-form is constitutive of the thicker normative fact, not that the thick fact is inferred from neutral observation. No test for social facts can be wholly non-social; the relevant independence is argumentative. The test must not presuppose the conclusion in the particular case.

This is analogous to the analysis of speech acts. Austin's account (1962) does not identify a promise by prior metaphysical classification; it identifies it by its uptake, conditions of satisfaction, and effects in the conversation. A reason-demand is identified by its illocutionary role: it invites a move that can alter the assessment of the initial event. If no such differential role is available, the utterance may be a rebuke, a request for information, or a failed attempt to create a standard. The observer can test the role contrastively: does the response differ when an account is offered? Does an accepted excuse alter the treatment of the same behavior? Does a challenge to the standard trigger discussion, exception-making, or rule-revision rather than mere surprise? These are observable social contrasts, not merely verbal labels.

The metaphysical work of the diagnostic is to supply a necessary structural condition for normative social facts. It does not explain why a community adopts a standard; that may require explanations in terms of coordination, morality, power, or tradition. It explains what it is for a regularity to be normative rather than merely predictive. A regularity is normative for a group when it is taken up in a public practice of justification and correction. This connects the account to the rule-following literature. Wittgenstein's private-language argument and Kripke's rule-following paradox (1982) show that past behavior does not by itself fix a rule; what makes a practice rule-governed is the public practice of criticizing misapplications and justifying correct ones. McDowell's point that normativity is objective rather than causal is also relevant: the normative force of a regularity is not a hidden mental attitude but a public form of evaluation. Answerability specifies that public form. It is a functional and constitutive account: the normative status of a regularity consists in its role in a practice of justification and correction; the same feature explains why deviations are treated as violations rather than mere surprises.

2. A contrastive diagnostic for repair and standing

To make the criterion operational, it should be contrastive. The question is not whether participants call a regularity a norm. The question is what form their responses to deviations take. A regularity R is answerable for a group G when G's shared responses to deviations from R have a repair form rather than a prediction-revision form.

A prediction-revision response updates a model of behavior. If my friend misses coffee, I may think she is out of coffee, ill, or distracted. The response changes my forecast. It does not require her to answer for the absence. It does not create an obligation to apologize or compensate. It does not change her standing in the reason-giving space, except perhaps insofar as my confidence in her reliability changes as a private forecast.

A repair response treats the deviation as covered by a standard that admits exceptions. The core condition can be stated minimally: R is answerable for G iff G's shared response to not-R includes (i) a recognized move that addresses the deviator as owing an account, and (ii) a recognized move of account, excuse, justification, or challenge that can, under G's practices, change the classification of the event or the deviator's normative standing. These are not necessary and sufficient conditions in a strict formal sense, because practices vary in formality and linguistic richness. But they are the minimal markers. Additional markers help identify weak cases: solicitation of an account by question, gesture, interruption, formal notice, or penalty; recognized types of account such as excuse, justification, apology, procedural objection, or challenge to the standard; acceptance or rejection of the account; and a change in entitlement, liability, credibility, access, or eligibility to perform a future act. Governance—training, rituals, procedural rules, sanctions, appeals, normatively articulated incentives—often sustains the practice, but its absence does not show that answerability is absent if the core repair form is shared.

The diagnostic must distinguish normative standing changes from ordinary expectation updates. Suppose I expect my colleague to submit a report. If she fails and I privately decide to delegate less, that is a strategic or epistemic update. No one is treated as entitled to address her as owing an account; she is not placed in a position where an excuse can discharge a demand or a challenge can alter the claim against her. If, however, the report was a shared obligation, and her failure prompts the question, "Why did you not submit it?"; she offers an excuse; the excuse is assessed; and the outcome affects whether she is excused, blamed, or required to remedy the failure, then standing has changed. The change is not merely that others trust her less. It is that she has entered a relation in which she is owed an account and can, in turn, make a claim about why the account should be accepted.

The same contrast applies to queueing. If someone cuts a line and others merely say, "He is unusual," and adjust their expectations, the line may be a weak regularity. If they say, "You cannot do that," the person says, "I am sorry, I did not see the queue," and they accept the apology and reestablish the line, the repair form is present. The apology is not merely a mood; it is a move that can discharge the demand. If the apology is rejected, the event is treated as a breach and standing changes. If the line is not a standard but a coincidental pattern, no such account is owed, and no apology can alter the normative treatment of the event.

The diagnostic must allow for internalization. A norm may be internalized so that the agent criticizes herself without another's rebuke. This is still social answerability when the self-criticism is supplied by a shared corrective grammar: the same standard is applied by others, and the agent recognizes that her self-assessment is part of a practice of challenge. A purely private habit of self-discipline, by contrast, is not a social fact. Epistemic answerability can also generate standing effects without blame: a scientist's reliability may fall when she cannot justify a claim; a juror's credibility may be challenged; a witness's testimony may be discounted. The standing that changes is credibility or authority, not only personal trust.

The diagnostic also distinguishes normative answerability from mere social pressure or domination. A coercive regime may force compliance and even demand explanations. If all objections are irrelevant, if no excuse, appeal, or challenge can alter the outcome, and if participants know that the procedure is ceremonial, the practice is closer to behavioral conditioning than to answerability. The test is substantive reason-responsiveness, not formal presence of speech. A reason is substantively operative when, by the institution's own grammar, it can be a ground for a different normative classification: permitted rather than forbidden, valid rather than invalid, liable rather than exempt, competent rather than incompetent. The reason need not often succeed. A minimal norm may allow only one recognized exception. The point is that the practice treats certain reasons as potentially operative, even if those reasons are ultimately rejected. Scanlon's insight about reasons (1998) helps: a reason has social force when it can be invoked in a dispute and rejected only by appeal to a further reason. But the institutional version requires that the rejection track recognized criteria rather than external whim. If an appeal is ritually heard but never affects the outcome, and this is known, the reason has no social force; it is a token of procedure, not a ground of decision. If a narrow legal system recognizes that perjury, jurisdictional error, or a specified excuse can change a verdict or penalty, then the system is answerable in a thin but substantive sense, even if the space of reasons is narrow or unjust.

The diagnostic is not limited to rich language, but the range should be limited to minimal reason-competent participants. Nonlinguistic communities can display proto-answerability through gestures, exclusion, restoration, and remedial acts. Children in a sharing game may be corrected for taking an extra turn; an apology, trade, or reperformance may restore standing. In such cases the reason-demand need not be propositional; the account can be a compensatory act, and the standing effect is visible in future access, trust, or inclusion. The essay does not extend the account to nonhuman animals, where behavioral correction may be ethological rather than second-personal. The claim is about social answerability among participants who can understand reasons to some degree and can be addressed as owing an account.

3. Normative regularities, conventions, and institutional facts

The answerability criterion does not isolate every institutional fact. It isolates normative social regularities. A useful typology distinguishes three levels.

A mere regularity is a pattern that yields failed predictions. A person's coffee habit, a seasonal pattern of traffic, or a statistical tendency to arrive late are of this kind when deviations are treated

as changes in the pattern rather than breaches.

A normative regularity is a pattern embedded in answerability. It may be a convention, etiquette, custom, weak social norm, or epistemic practice. Deviations from it may call for mild reasons, produce embarrassment or ridicule, and alter relational standing. Fashion, workplace small talk, table manners, and research-group routines often belong here. They can be answerable without being institutional facts. If someone wears an out-of-fashion garment, others may ask for an explanation or laugh; if someone breaks a minor etiquette, others may feel slighted. The responses are second-personal, but they do not create an office, confer institutional authority, or establish a status function.

An institutional fact, in Searle's sense (1995), is a fact constituted by a status function: X counts as Y in C. A piece of paper counts as money, a person counts as a president, a line counts as a queue with legal or institutional force, a line of speech counts as a promise. Institutional facts need not be recurrent behavioral regularities. A flag may count as a national symbol; a passport may contain a status entry; a one-off declaration may create an office; a seat may be reserved. These facts are constituted by collective recognition, not by repeated interpersonal reason-demands.

This requires a refinement of the central claim. Answerability is not a necessary condition for every institutional fact. It is a necessary condition for the normative exercise of deontic powers attached to status functions that bear on persons. When a status confers authority to decide, power to bind, eligibility to perform, standing to enforce, or entitlement to claim, those powers are normative only if the status is embedded in a grammar of competence and challenge. A president is not merely a person labeled president; she is a person whose decisions are treated as authoritative because the system recognizes conditions under which the label applies, conditions under which her acts are valid, and conditions under which those acts can be contested. A judge is not merely a person in a robe; the robe's force depends on a practice in which rulings can be appealed, jurisdiction can be challenged, and reasons can be demanded. A role that confers authority but admits no recognized reason for challenge, no distinction between competent and incompetent exercise, and no remedy for error is not an institutional role in the normative sense relevant here; it is a mere designation or a source of causal force. This distinction matters for Searlean cases. A reserved seat is an institutional fact; if it is not attached to a right that can be challenged, answerability may be absent. If it is attached to a right of entry, then the fact that someone occupies it improperly can generate a demand and remedy.

This qualification handles coercive, arbitrary, or minimally contestable institutions. A tyrannical office may allow very little genuine challenge, but if it has a formal grammar—rules of succession, procedures for removal, recognized forms of petition, or a distinction between authorized and unauthorized acts—it is still answerable in a thin institutional sense. What is excluded is not injustice or coercion, but the absence of any substantive reason-sensitive structure. If a person's power is exercised as brute force, with no recognized standard by which exercise can be evaluated, no remedy for error, and no standing from which to object, the fact is closer to a causal regularity of domination than to a normative institution. The institution is answerable

because it treats its own acts as subject to a grammar of reasons, even if that grammar is narrow, unjust, or easily suppressed.

The diagnostic can be applied to impersonal institutions. Legal systems are often maintained by procedural rules rather than by face-to-face rebukes. A law creates a standing: certain agents are authorized, certain actions are required, certain penalties follow. But the law is not a mere causal program. It has a grammar of reasons: statutes, precedents, defenses, procedural safeguards, and appeals. When a person violates a law, the state may demand an account; the person may offer excuses or legal objections; the outcome may change legal standing. The second-person space is institutional, not interpersonal.

The same point applies to institutional facts whose central feature is status or eligibility rather than active reason-demand. Ownership is answerable because possession can be challenged: a claimant may ask how the possessor has the thing, and the possessor may raise title, purchase, gift, emergency, or mistake. If the challenge fails, standing changes by loss, compensation, or liability. Money is answerable in routine transactions even when no one asks for an explanation: a banknote counts as money because it sits in a framework of acceptance, refusal, counterfeit challenge, legal-tender obligation, and remedy. Corporate personhood is similar: a corporation can be asked to give reasons in a court, can appeal, can be fined, and its officers can be answerable for corporate acts. In these cases, answerability is often latent. It is present not because every transaction generates a reason-demand, but because the status is embedded in a system in which claims can be made, defenses raised, and standings changed.

Searle's notion of the background is important here, but it needs care. The background is not a list of explicit beliefs; it includes abilities, motivations, know-how, and forms of life that make explicit status functions possible. Answerability belongs to this background in a specific way. It is the standing normative expectation that status-appropriate acts are reason-responsive: that a status-holder can be called to give reasons, that a citizen can invoke the status as a reason, and that deviations can be classified as breaches, exceptions, or challenges. This is not merely background knowledge. It is a shared practice of normative response without which deontic powers would be empty labels. A status function imposes deontic powers only if the background supplies a way for those powers to be exercised, recognized, and contested. Answerability is what makes deontic powers more than brute facts with causal effects: it makes them subject to validity conditions and challenge. Collective intentionality, in the work of Bratman and others, explains the shared attitude that sustains a joint practice. Answerability specifies the operational form of that intentionality in normative institutions: the participants take one another as participants who can be addressed, who can answer, and whose answers can matter.

Lewisian conventions deserve a separate treatment. Lewis defines a convention as a regularity of behavior that solves a coordination problem, is supported by common interests, and is maintained by mutual beliefs about expectations. A group regularly does A; each believes that the others believe that the others do A; there is a common interest in everyone doing A; and the regularity is arbitrary in the sense that another regularity could have served. Lewisian conventions look like regularities, but they are not merely statistical facts.

Do Lewisian conventions satisfy the answerability diagnostic? Some do, some do not. Consider a minimal coordination equilibrium in which everyone happens to use the left hand to greet, but deviations are not treated as breaches. If one person uses the right hand, others may be confused or adjust; no one demands a reason; no one's standing changes. The regularity may be a convention in Lewis's sense if mutual expectations sustain it, but it lacks answerability. It is a coordinative fact, not yet a normative social fact in the strong sense.

Now consider a research group's convention to meet in Room 101. If a member appears in Room 102, others may say, "What is wrong?" The member may offer an excuse: "Room 101 is closed," "I was called away," or "I forgot." The group can assess whether the excuse applies. The deviation may change standing: annoyance, distrust, a reminder, or forgiveness if the excuse is accepted. The regularity is maintained partly by these corrective responses. In this case, the convention satisfies the answerability diagnostic without becoming an institution. No office is created; no legal authority is conferred. Yet the regularity is normative because deviations are represented as breaches or exceptions within a shared repair protocol.

The result is not that answerability is ontologically prior to coordination. Coordination is the first-order problem that conventions solve. Answerability is a second-order feature: a shared protocol for treating deviations. This protocol can itself be analyzed in Lewisian terms. It is a second-order convention. The first-order convention coordinates on A. The second-order convention coordinates on how to respond to not-A: what counts as an exception, what remedial act is expected, what sanction or forgiveness follows, and how standing is revised. It may be arbitrary among alternative repair protocols. A group may coordinate on apology, on exclusion, on retraining, or on silent adjustment. The choice may be focal, conventional, or shaped by power. But once the protocol exists, it changes the strategic structure of the first-order regularity. A deviation is no longer merely a move to another equilibrium; it is an event that can trigger a repair cycle with costs, benefits, and standing effects.

This is why answerability changes the Lewisian ontology of conventions, though not by positing a new primitive. A pure Lewisian convention is an equilibrium of behavior and mutual belief. An answerable convention is an equilibrium plus a shared corrective grammar. The addition can be described in Lewisian terms, but it is not reducible to the first-order equilibrium. The same first-order behavior can occur with or without the second-order repair protocol, and the two cases differ in normative force. In the first, a deviation is a failed coordination; in the second, it is a breach subject to excuse, sanction, or challenge. The ontological point is that normativity is located in the second-order response, not in the first-order regularity alone. Mutual belief can create expectations without creating responsibility. If everyone expects me to arrive at ten, my lateness may disappoint but not blame me unless the expectation has become a standard for which I am answerable. The transition from mutual expectation to answerability occurs when deviations are represented as breaches and when the group recognizes a right to demand reasons and a duty to answer. This is the social-ontological fact that Lewis's first-order equilibrium conditions alone do not capture. The second-order convention is not merely a convention about responses; it is the form of normativity that makes exceptions nonarbitrary. First-order conventions have alternative

equilibria; answerable practices have recognized exceptions. This distinguishes rules from mere regularities.

The traffic example often used for conventions should be handled carefully. Driving on the right may begin as a convention, but in many places it is quickly embedded in legal regulation. The convention becomes answerable partly because of legal sanctions, partly because of safety interests, and partly because drivers treat violations as breaches that can be excused or defended. This is not a counterexample; it shows how a first-order convention can acquire a richer answerability structure. But the pure convention case is better illustrated by practices without office or legal authority: greetings, meeting rooms, team routines, or ritualized forms of address. These can be answerable while remaining noninstitutional.

4. Emergence, degrees, and conclusion

A regularity becomes normative when it is taken up by a community as a standard for conduct and evaluation. This can happen by explicit rule-making, by gradual mutual expectation, or by a crisis that reveals the social meaning of the practice. In each case, the mark is not an increase in frequency but a change in the type of response to deviation. People begin to treat the regularity as something for which agents can be held accountable. They begin to distinguish violations from exceptions. They begin to use reason-giving to maintain the regularity.

The governance condition, therefore, should be understood carefully. It does not say that a regularity is normative because normative corrections maintain it. That would be circular. It says that a regularity has become normative when deviations from it are represented in second-order social practices as breaches rather than mere changes, and when those practices are shared and effective enough to affect normative standing. The transition is a change in representation and response: from “he is unusual” to “he should not have done that unless he has an excuse.” This is not a physical change in the frequency of behavior. It is a change in the form of the social responses to behavior.

The governance condition also covers institutions that persist for reasons other than repeated interpersonal reason-giving. A legal system may persist because of enforcement infrastructure, professional training, and legal culture. A currency may persist because of state backing and market trust. These are not explanations that eliminate answerability. They are the material and procedural conditions under which answerability is exercised. If the legal system admits no reasons, no defenses, no appeals, and no distinction between violations and non-violations, it is closer to a mechanism than to a normative institution. If it maintains a framework in which deviations are assessed, justified, excused, or sanctioned, then its persistence is part of a normative social fact.

Why does a regularity begin to be maintained in this way? The answer is not a single mechanism. It may be explicit authorization: a group decides to adopt a rule. It may be repetition: repeated corrections make the practice salient as a standard. It may be a coordination failure: deviations become costly enough that the group develops a shared response. It may be a moral or political

transformation: a previously tolerated practice comes to be seen as a breach. In each case, the observable mark is the emergence of second-order reason-giving. A regularity is no longer merely a description of what people do; it becomes a reason for what they should do and a standard for evaluating what they did.

This may be a matter of degree. Some practices are strongly normative; others are weak. A fashion trend may generate ridicule, but the trend may be too unstable to create strong standing. A traffic convention may generate strong answerability because of legal sanctions. A shared mealtime may generate mild answerability because missing it is treated as a slight. The distinction is not between norm and non-norm as a sharp physical boundary; it is between a space of answerability and no such space, and between weak answerability and answerability attached to institutional status. The diagnostic can locate the point at which a regularity crosses from mere prediction to normative social fact, even if the strength of the norm varies.

The thesis, then, is not that institutions are social facts because people describe them with normative language. It is that normative language is the medium in which social facts are constituted, but the medium must be specified in terms of observable second-personal practices: reason-demands, justifications, excuses, standing effects, and governance. A normative social fact creates a shared space in which agents can be asked to answer for their deviations. A coincidental regularity does not. It yields failed expectations, not violations. An institutional fact is a status-constituted fact; when it attaches deontic powers to persons, its normative authority requires a substantive grammar of answerability. The mark of a normative social fact is not sanction, not belief, not frequency, but answerability; the mark of normative institutional authority is answerability joined to collectively recognized status.

This is a modest but significant contribution to social ontology. It does not replace Searle's account of status functions, Lewis's account of conventions, or Hart's account of rules. It specifies the relational form in which those structures become normative. It gives social ontology a more precise criterion for distinguishing brute regularities from normative social facts and for identifying when institutional powers are normative rather than merely causal.

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